



Bill Text: IL HB3773 | 2023-2024 | 103rd General Assembly | Chaptered

Illinois House Bill 3773 (*Prior Session Legislation*)

Bill Title: Reinserts the provisions of the engrossed bill with the following changes. Further amends the Employment Article of the Illinois Human Rights Act. Provides that it is a civil rights violation: (1) with respect to recruitment, hiring, promotion, renewal of employment, selection for training or apprenticeship, discharge, discipline, tenure, or the terms, privileges, or conditions of employment, for an employer to use artificial intelligence that has the effect of subjecting employees to discrimination on the basis of protected classes identified under the Article or to use zip codes as a proxy for protected classes identified under the Article; and (2) for an employer to fail to provide notice to an employee that the employer is using artificial intelligence. Defines "artificial intelligence" and "generative artificial intelligence". Removes the amendatory changes to the Consumer Fraud and Deceptive Business Practices Act. Makes other changes. Adds a January 1, 2026 effective date.

Sponsorship: Partisan Bill (Democrat 11)

Status: (*Passed*) 2024-08-09 - Public Act 103-0804 [HB3773 Detail]

Download: [Illinois-2023-HB3773-Chaptered.html](#)

Public Act 103-0804

HB3773 Enrolled

LRB103 27562 SPS 53938 b

AN ACT concerning business.

**Be it enacted by the People of the State of Illinois,
represented in the General Assembly:**

Section 5. The Illinois Human Rights Act is amended by changing Sections 2-101 and 2-102 as follows:

(775 ILCS 5/2-101)

Sec. 2-101. Definitions. The following definitions are applicable strictly in the context of this Article.

(A) Employee.

(1) "Employee" includes:

(a) Any individual performing services for remuneration within this State for an employer;

(b) An apprentice;

(c) An applicant for any apprenticeship.

For purposes of subsection (D) of Section 2-102 of this Act, "employee" also includes an unpaid intern. An unpaid intern is a person who performs work for an

employer under the following circumstances:

- (i) the employer is not committed to hiring the person performing the work at the conclusion of the intern's tenure;
- (ii) the employer and the person performing the work agree that the person is not entitled to wages for

the work performed; and

(iii) the work performed:

- (I) supplements training given in an educational environment that may enhance the employability of the intern;
- (II) provides experience for the benefit of the person performing the work;
- (III) does not displace regular employees;
- (IV) is performed under the close supervision of existing staff; and
- (V) provides no immediate advantage to the employer providing the training and may occasionally impede the operations of the employer.

(2) "Employee" does not include:

- (a) (Blank);
- (b) Individuals employed by persons who are not "employers" as defined by this Act;
- (c) Elected public officials or the members of their immediate personal staffs;
- (d) Principal administrative officers of the State or of any political subdivision, municipal corporation or other governmental unit or agency;
- (e) A person in a vocational rehabilitation facility certified under federal law who has been designated an evaluatee, trainee, or work activity

client.

(B) Employer.

(1) "Employer" includes:

- (a) Any person employing one or more employees within Illinois during 20 or more calendar weeks within the calendar year of or preceding the alleged violation;
- (b) Any person employing one or more employees

when a complainant alleges civil rights violation due to unlawful discrimination based upon his or her physical or mental disability unrelated to ability, pregnancy, or sexual harassment;

(c) The State and any political subdivision, municipal corporation or other governmental unit or agency, without regard to the number of employees;

(d) Any party to a public contract without regard to the number of employees;

(e) A joint apprenticeship or training committee without regard to the number of employees.

(2) "Employer" does not include any place of worship, religious corporation, association, educational institution, society, or non-profit nursing institution conducted by and for those who rely upon treatment by prayer through spiritual means in accordance with the tenets of a recognized church or religious denomination with respect to the employment of individuals of a

particular religion to perform work connected with the carrying on by such place of worship, corporation, association, educational institution, society or non-profit nursing institution of its activities.

(C) Employment Agency. "Employment Agency" includes both

public and private employment agencies and any person, labor

organization, or labor union having a hiring hall or hiring

office regularly undertaking, with or without compensation, to

procure opportunities to work, or to procure, recruit, refer

or place employees.

(D) Labor Organization. "Labor Organization" includes any

organization, labor union, craft union, or any voluntary

unincorporated association designed to further the cause of

the rights of union labor which is constituted for the purpose, in whole or in part, of collective bargaining or of

dealing with employers concerning grievances, terms or

conditions of employment, or apprenticeships or applications

for apprenticeships, or of other mutual aid or protection in

connection with employment, including apprenticeships or

applications for apprenticeships.

(E) Sexual Harassment. "Sexual harassment" means any unwelcome sexual advances or requests for sexual favors or any

conduct of a sexual nature when (1) submission to such conduct

is made either explicitly or implicitly a term or condition of

an individual's employment, (2) submission to or rejection of

such conduct by an individual is used as the basis for

employment decisions affecting such individual, or (3) such

conduct has the purpose or effect of substantially interfering

with an individual's work performance or creating an intimidating, hostile or offensive working environment.

For purposes of this definition, the phrase "working environment" is not limited to a physical location an employee

is assigned to perform his or her duties.

(E-1) Harassment. "Harassment" means any unwelcome conduct

on the basis of an individual's actual or perceived race,

color, religion, national origin, ancestry, age, sex, marital

status, order of protection status, disability, military

status, sexual orientation, pregnancy, unfavorable discharge

from military service, citizenship status, or work authorization status that has the purpose or effect of substantially interfering with the individual's work performance or creating an intimidating, hostile, or offensive

working environment. For purposes of this definition, the

phrase "working environment" is not limited to a physical

location an employee is assigned to perform his or her duties.

(F) Religion. "Religion" with respect to employers includes all aspects of religious observance and practice, as well as belief, unless an employer demonstrates that he is unable to reasonably accommodate an employee's or prospective employee's religious observance or practice without undue hardship on the conduct of the employer's business.

(G) Public Employer. "Public employer" means the State, an agency or department thereof, unit of local government, school

district, instrumentality or political subdivision.

(H) Public Employee. "Public employee" means an employee of the State, agency or department thereof, unit of local government, school district, instrumentality or political subdivision. "Public employee" does not include public officers or employees of the General Assembly or agencies thereof.

(I) Public Officer. "Public officer" means a person who is elected to office pursuant to the Constitution or a statute or ordinance, or who is appointed to an office which is established, and the qualifications and duties of which are

prescribed, by the Constitution or a statute or ordinance, to

discharge a public duty for the State, agency or department

thereof, unit of local government, school district, instrumentality or political subdivision.

(J) Eligible Bidder. "Eligible bidder" means a person who,

prior to contract award or prior to bid opening for State

contracts for construction or construction-related services,

has filed with the Department a properly completed,

sworn and

currently valid employer report form, pursuant to the Department's regulations. The provisions of this Article

relating to eligible bidders apply only to bids on contracts

with the State and its departments, agencies, boards, and

commissions, and the provisions do not apply to bids on contracts with units of local government or school districts.

(K) Citizenship Status. "Citizenship status" means the status of being:

(1) a born U.S. citizen;

(2) a naturalized U.S. citizen;

(3) a U.S. national; or

(4) a person born outside the United States and not a U.S. citizen who is lawfully present and who is protected

from discrimination under the provisions of Section 1324b

of Title 8 of the United States Code, as now or hereafter

amended.

(L) Work Authorization Status. "Work authorization status"

means the status of being a person born outside of the United

States, and not a U.S. citizen, who is authorized by the

federal government to work in the United States.

(M) Artificial Intelligence. "Artificial intelligence"

means a machine-based system that, for explicit or implicit

objectives, infers, from the input it receives, how to generate outputs such as predictions, content,

recommendations, or decisions that can influence physical or

virtual environments. "Artificial intelligence" includes

generative artificial intelligence.

(N) Generative Artificial Intelligence. "Generative artificial intelligence" means an automated computing system

that, when prompted with human prompts, descriptions,

or
queries, can produce outputs that simulate human-
produced
content, including, but not limited to, the following:
(1)
textual outputs, such as short answers, essays, poetry,
or
longer compositions or answers; (2) image outputs, such
as
fine art, photographs, conceptual art, diagrams, and
other
images; (3) multimedia outputs, such as audio or video
in the
form of compositions, songs, or short-form or long-form
audio
or video; and (4) other content that would be otherwise
produced by human means.

(Source: P.A. 101-221, eff. 1-1-20; 101-430, eff. 7-1-20;

102-233, eff. 8-2-21; 102-558, eff. 8-20-21; 102-1030, eff.

5-27-22.)

(775 ILCS 5/2-102) (from Ch. 68, par. 2-102)

Sec. 2-102. Civil rights violations - employment. It is a

civil rights violation:

(A) Employers. For any employer to refuse to hire, to segregate, to engage in harassment as defined in subsection (E-1) of Section 2-101, or to act with respect

to recruitment, hiring, promotion, renewal of employment,

selection for training or apprenticeship, discharge, discipline, tenure or terms, privileges or conditions of

employment on the basis of unlawful discrimination, citizenship status, or work authorization status. An employer is responsible for harassment by the employer's

nonmanagerial and nonsupervisory employees only if the employer becomes aware of the conduct and fails to take reasonable corrective measures.

(A-5) Language. For an employer to impose a restriction that has the effect of prohibiting a language

from being spoken by an employee in communications that are unrelated to the employee's duties.

For the purposes of this subdivision (A-5), "language" means a person's native tongue, such as Polish, Spanish,

or Chinese. "Language" does not include such things as slang, jargon, profanity, or vulgarity.

(A-10) Harassment of nonemployees. For any employer, employment agency, or labor organization to engage in harassment of nonemployees in the workplace. An employer

is responsible for harassment of nonemployees by the employer's nonmanagerial and nonsupervisory employees only

if the employer becomes aware of the conduct and fails to

take reasonable corrective measures. For the purposes of

this subdivision (A-10), "nonemployee" means a person who

is not otherwise an employee of the employer and is directly performing services for the employer pursuant to

a contract with that employer. "Nonemployee" includes contractors and consultants. This subdivision applies to

harassment occurring on or after the effective date of this amendatory Act of the 101st General Assembly.

(B) Employment agency. For any employment agency to fail or refuse to classify properly, accept applications

and register for employment referral or apprenticeship referral, refer for employment, or refer for

apprenticeship on the basis of unlawful discrimination, citizenship status, or work authorization status or to accept from any person any job order, requisition or request for referral of applicants for employment or apprenticeship which makes or has the effect of making unlawful discrimination or discrimination on the basis of

citizenship status or work authorization status a condition of referral.

(C) Labor organization. For any labor organization to limit, segregate or classify its membership, or to

limit

employment opportunities, selection and training for apprenticeship in any trade or craft, or otherwise to take, or fail to take, any action which affects adversely

any person's status as an employee or as an applicant for

employment or as an apprentice, or as an applicant for apprenticeships, or wages, tenure, hours of employment or

apprenticeship conditions on the basis of unlawful discrimination, citizenship status, or work authorization

status.

(D) Sexual harassment. For any employer, employee, agent of any employer, employment agency or labor organization to engage in sexual harassment; provided, that an employer shall be responsible for sexual harassment of the employer's employees by nonemployees or nonmanagerial and nonsupervisory employees only if the employer becomes aware of the conduct and fails to take

reasonable corrective measures.

(D-5) Sexual harassment of nonemployees. For any employer, employee, agent of any employer, employment agency, or labor organization to engage in sexual harassment of nonemployees in the workplace. An employer is responsible for sexual harassment of nonemployees by the employer's nonmanagerial and nonsupervisory employees

only if the employer becomes aware of the conduct and fails to take reasonable corrective measures. For the purposes of this subdivision (D-5), "nonemployee" means a

person who is not otherwise an employee of the employer and is directly performing services for the employer pursuant to a contract with that employer. "Nonemployee"

includes contractors and consultants. This subdivision applies to sexual harassment occurring on or after the effective date of this amendatory Act of the 101st General Assembly.

(E) Public employers. For any public employer to refuse to permit a public employee under its jurisdiction who takes time off from work in order to practice his or her religious beliefs to engage in work, during hours other than such employee's regular working hours, consistent with the operational needs of the employer and in order to compensate for work time lost for such religious reasons. Any employee who elects such deferred work shall be compensated at the wage rate which he or she

would have earned during the originally scheduled work period. The employer may require that an employee who plans to take time off from work in order to practice his or her religious beliefs provide the employer with a notice of his or her intention to be absent from work not exceeding 5 days prior to the date of absence.

(E-5) Religious discrimination. For any employer to impose upon a person as a condition of obtaining or retaining employment, including opportunities for promotion, advancement, or transfer, any terms or conditions that would require such person to violate or forgo a sincerely held practice of his or her religion including, but not limited to, the wearing of any attire, clothing, or facial hair in accordance with the requirements of his or her religion, unless, after engaging in a bona fide effort, the employer demonstrates that it is unable to reasonably accommodate the employee's or prospective employee's sincerely held religious belief, practice, or observance without undue hardship on the conduct of the employer's business.

Nothing in this Section prohibits an employer from enacting a dress code or grooming policy that may include restrictions on attire, clothing, or facial hair to

maintain workplace safety or food sanitation.

(F) Training and apprenticeship programs. For any employer, employment agency or labor organization to

discriminate against a person on the basis of age in the

selection, referral for or conduct of apprenticeship or training programs.

(G) Immigration-related practices.

(1) for an employer to request for purposes of satisfying the requirements of Section 1324a(b) of Title 8 of the United States Code, as now or hereafter amended, more or different documents than are required under such Section or to refuse to honor documents tendered that on their face reasonably appear to be genuine or to refuse to honor work authorization based upon the specific status or term of status that accompanies the authorization to work; or

(2) for an employer participating in the E-Verify Program, as authorized by 8 U.S.C. 1324a, Notes, Pilot Programs for Employment Eligibility Confirmation (enacted by PL 104-208, div. C title IV, subtitle A) to refuse to hire, to segregate, or to act with respect to recruitment, hiring, promotion, renewal of employment, selection for training or apprenticeship, discharge, discipline, tenure or terms, privileges or conditions of employment without following the procedures under the E-Verify Program.

(H) (Blank).

(I) Pregnancy. For an employer to refuse to hire, to segregate, or to act with respect to recruitment, hiring,

promotion, renewal of employment, selection for training

or apprenticeship, discharge, discipline, tenure or terms,

privileges or conditions of employment on the basis of pregnancy, childbirth, or medical or common conditions related to pregnancy or childbirth. Women affected by pregnancy, childbirth, or medical or common conditions related to pregnancy or childbirth shall be treated the same for all employment-related purposes, including

receipt of benefits under fringe benefit programs, as other persons not so affected but similar in their ability

or inability to work, regardless of the source of the inability to work or employment classification or status.

(J) Pregnancy; reasonable accommodations.

(1) If after a job applicant or employee, including a part-time, full-time, or probationary employee, requests a reasonable accommodation, for an employer to not make reasonable accommodations for any medical or common condition of a job applicant or employee related to pregnancy or childbirth, unless the employer can demonstrate that the accommodation would impose an undue hardship on the ordinary operation of the business of the employer. The employer may request documentation from the employee's health care provider concerning the need for the requested reasonable accommodation or accommodations to the same extent documentation is requested for

conditions related to disability if the employer's request for documentation is job-related and consistent with business necessity. The employer may require only the medical justification for the requested accommodation or accommodations, a description of the reasonable accommodation or accommodations medically advisable, the date the reasonable accommodation or accommodations became medically advisable, and the probable duration of the reasonable accommodation or accommodations. It is the duty of the individual seeking a reasonable accommodation or accommodations to submit to the employer any documentation that is requested in accordance with this paragraph. Notwithstanding the provisions of this paragraph, the employer may require documentation by the employee's health care provider to determine compliance with other laws. The employee and employer shall engage in a timely, good faith, and meaningful exchange to determine effective reasonable accommodations.

(2) For an employer to deny employment

opportunities or benefits to or take adverse action against an otherwise qualified job applicant or employee, including a part-time, full-time, or probationary employee, if the denial or adverse action is based on the need of the employer to make reasonable

accommodations to the known medical or common conditions related to the pregnancy or childbirth of the applicant or employee.

(3) For an employer to require a job applicant or employee, including a part-time, full-time, or probationary employee, affected by pregnancy, childbirth, or medical or common conditions related to pregnancy or childbirth to accept an accommodation when the applicant or employee did not request an accommodation and the applicant or employee chooses not to accept the employer's accommodation.

(4) For an employer to require an employee, including a part-time, full-time, or probationary employee, to take leave under any leave law or policy of the employer if another reasonable accommodation can be provided to the known medical or common conditions related to the pregnancy or childbirth of an employee. No employer shall fail or refuse to reinstate the employee affected by pregnancy, childbirth, or medical or common conditions related to pregnancy or childbirth to her original job or to an equivalent position with equivalent pay and accumulated seniority, retirement, fringe benefits, and other applicable service credits upon her signifying her intent to return or when her need for reasonable accommodation ceases, unless the employer

can demonstrate that the accommodation would impose an undue hardship on the ordinary operation of the business of the employer.

For the purposes of this subdivision (J), "reasonable accommodations" means reasonable modifications or adjustments to the job application process or work environment, or to the manner or circumstances under which

the position desired or held is customarily performed,

that enable an applicant or employee affected by pregnancy, childbirth, or medical or common conditions related to pregnancy or childbirth to be considered for the position the applicant desires or to perform the essential functions of that position, and may include, but

is not limited to: more frequent or longer bathroom breaks, breaks for increased water intake, and breaks for periodic rest; private non-bathroom space for expressing breast milk and breastfeeding; seating; assistance with manual labor; light duty; temporary transfer to a less strenuous or hazardous position; the provision of an accessible worksite; acquisition or modification of equipment; job restructuring; a part-time or modified work schedule; appropriate adjustment or modifications of examinations, training materials, or policies; reassignment to a vacant position; time off to recover from conditions related to childbirth; and leave necessitated by pregnancy, childbirth, or medical or

common conditions resulting from pregnancy or childbirth.

For the purposes of this subdivision (J), "undue hardship" means an action that is prohibitively expensive

or disruptive when considered in light of the following factors: (i) the nature and cost of the accommodation needed; (ii) the overall financial resources of the facility or facilities involved in the provision of the reasonable accommodation, the number of persons employed

at the facility, the effect on expenses and resources, or

the impact otherwise of the accommodation upon the operation of the facility; (iii) the overall financial resources of the employer, the overall size of the business of the employer with respect to the number of its

employees, and the number, type, and location of its facilities; and (iv) the type of operation or operations

of the employer, including the composition, structure,

and

functions of the workforce of the employer, the geographic

separateness, administrative, or fiscal relationship of the facility or facilities in question to the employer.

The employer has the burden of proving undue hardship.

The

fact that the employer provides or would be required to provide a similar accommodation to similarly situated employees creates a rebuttable presumption that the accommodation does not impose an undue hardship on the employer.

No employer is required by this subdivision (J) to

create additional employment that the employer would not

otherwise have created, unless the employer does so or

would do so for other classes of employees who need

accommodation. The employer is not required to discharge

any employee, transfer any employee with more seniority,

or promote any employee who is not qualified to perform the job, unless the employer does so or would do so to accommodate other classes of employees who need it.

(K) Notice.

(1) For an employer to fail to post or keep posted in a conspicuous location on the premises of the employer where notices to employees are customarily posted, or fail to include in any employee handbook information concerning an employee's rights under this Article, a notice, to be prepared or approved by the Department, summarizing the requirements of this Article and information pertaining to the filing of a charge, including the right to be free from unlawful discrimination, the right to be free from sexual harassment, and the right to certain reasonable accommodations. The Department shall make the documents required under this paragraph available for retrieval from the Department's website.

(2) Upon notification of a violation of paragraph

(1) of this subdivision (K), the Department may launch a preliminary investigation. If the Department finds a

violation, the Department may issue a notice to show cause giving the employer 30 days to correct the violation. If the violation is not corrected, the Department may initiate a charge of a civil rights violation.

(L) Use of artificial intelligence.

(1) With respect to recruitment, hiring, promotion, renewal of employment, selection for training or apprenticeship, discharge, discipline, tenure, or the terms, privileges, or conditions of employment, for an employer to use artificial intelligence that has the effect of subjecting employees to discrimination on the basis of protected classes under this Article or to use zip codes as a proxy for protected classes under this Article.

(2) For an employer to fail to provide notice to an employee that the employer is using artificial intelligence for the purposes described in paragraph (1).

The Department shall adopt any rules necessary for the implementation and enforcement of this subdivision, including, but not limited to, rules on the circumstances and conditions that require notice, the time period for providing notice, and the means for providing notice.

(Source: P.A. 101-221, eff. 1-1-20; 102-233, eff. 8-2-21.)